

SHARE PURCHASE AGREEMENT

This Share Purchase Agreement (the "Agreement") is entered into as of January 15, 2024, by and between Northstar Technologies Pvt. Ltd. ("Seller") and Vertex Systems Pvt. Ltd. ("Buyer").

PURCHASE PRICE: \$50,000,000 (Fifty Million US Dollars)

ARTICLE 1: REPRESENTATIONS AND WARRANTIES

Section 1.1: Organization and Authority

Buyer represents and warrants that it is a private limited company duly organized, validly existing, and in good standing under the laws of India. Buyer has full corporate power and authority to execute, deliver, and perform this Agreement.

Section 1.2: Intellectual Property

Buyer represents and warrants that it owns all right, title, and interest in and to the Intellectual Property used in the Business, free and clear of all liens. Buyer has not received any claims alleging infringement of third-party intellectual property rights. All software developed by Buyer is original work product and does not incorporate any open source code with restrictive licenses.

Section 1.3: No Pending Litigation

Buyer represents and warrants that there is no pending or threatened litigation, arbitration, or governmental proceeding against Buyer or any of its subsidiaries that would have a Material Adverse Effect on the Business.

Section 1.4: Financial Statements

The financial statements of Buyer provided to Seller are true, complete, and correct in all material respects and have been prepared in accordance with Indian GAAP consistently applied.

ARTICLE 2: INDEMNIFICATION

Section 2.1: General Liability Cap

The aggregate liability of Buyer under this Agreement shall not exceed 20% of the Purchase Price (the "Cap"). The foregoing Cap shall not apply to liability arising from fraud, willful misconduct, or breach of fundamental representations.

Section 2.2: Basket

Buyer shall have no obligation to indemnify Seller for any Losses unless and until the aggregate amount of such Losses exceeds \$250,000 (the "Basket"). Once the Basket is exceeded, Buyer shall be liable for all Losses from the first dollar (deductible structure).

Section 2.3: Survival Period

The representations and warranties of Buyer contained in this Agreement shall survive the Closing for a period of 24 months (the "Survival Period"). Following the expiration of the Survival Period, no claim may be brought for any breach of representations or warranties.

ARTICLE 3: MATERIAL ADVERSE EFFECT

Section 3.1: Definition

"Material Adverse Effect" means any change, event, or effect that, individually or in the aggregate, has or would reasonably be expected to have a material adverse effect on the business, assets, or

financial condition of Buyer, except for changes resulting from: (a) general economic conditions; (b) industry-wide changes; (c) acts of war or terrorism; (d) natural disasters; (e) pandemics; (f) regulatory changes.

ARTICLE 4: TERMINATION

Section 4.1: Termination Rights

This Agreement may be terminated at any time prior to the Closing:

- (a) by mutual written consent of Seller and Buyer;
- (b) by Buyer if any representation or warranty of Seller is untrue in any material respect and such breach is not cured within 30 days of written notice;
- (c) by Seller if Buyer fails to obtain required financing;
- (d) by either party if a Material Adverse Effect has occurred and is continuing.

ARTICLE 5: CLOSING CONDITIONS

Section 5.1: Conditions to Buyer's Obligation

The obligation of Buyer to consummate the Closing is subject to the satisfaction of the following conditions:

- (a) The representations and warranties of Seller shall be true and correct in all material respects;
- (b) No Material Adverse Effect shall have occurred;
- (c) Seller shall have performed all obligations required under this Agreement;
- (d) All regulatory approvals shall have been received.

Section 5.2: Conditions to Seller's Obligation

The obligation of Seller to consummate the Closing is subject to the satisfaction of the following conditions:

- (a) The representations and warranties of Buyer shall be true and correct in all material respects;
- (b) Buyer shall have obtained all necessary financing;
- (c) All regulatory approvals shall have been obtained.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

NORTHSTAR TECHNOLOGIES PVT. LTD. VERTEX SYSTEMS PVT. LTD.

By: _____ By: _____

Name: Rajesh Kumar Name: Amit Shah

Title: CEO Title: CEO